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NEW JERSEY AS A CIVIL TRIAL ATTORNEY
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January 6, 2020

VIA E-FILE

Honorable Robert H. Gardner, J.S.C.
Essex County Superior Court
Historic Courthouse
470 Martin Luther King, Jr. Boulevard, 4th Floor
Newark, NJ 07102

Re: B.B. v. Mell, et. al.
Docket No. ESX-L-7200-19

Dear Judge Gardner:

The undersigned represents Plaintiff, B.B. in the above referenced matter. We filed an Order to Show Cause for Preliminary Injunction pursuant to R. 4:52 seeking an attachment and injunctive relief with regard to established assets/monies received and to be received by Mr. Mell. In our papers, we identified numerous entities that paid him, and continue to pay him and his wife. Among those are:

- Retirement distributions from GCM in the form of buyout and monthly payments
- Retirement distributions from GGP in the form of buyout and monthly payments
- Retirement distributions from W.H. Mell Associates
- Income from Aero Care include sale of assets including jet plane
- Income from the sale of the Bedminster property

The recent Order prepared by the Court limited Plaintiff's relief solely to income that Defendant, Mell receives from Gulfstream. In addition to this relief granted by the Court, Plaintiff also requested an attachment on the assets that were received and current income from all assets. It was undisputed at oral argument and in the papers submitted by the parties that Mell has been bought out of his business and other assets and receives monthly payments.

In opposition to Plaintiff's Order to Show Cause, Mell attached a Certification of his close friend Michael Simon Scott who manages Mell's assets. A copy is attached hereto as Exhibit A.

Mr. Scott certified that Mell received a buyout when he retired from Gulfstream. See Exhibit A at ¶5. Scott also certified that Mell liquidated certain assets held by his LLCs and trusts such as his airplane for which he received income Id. at ¶10. Lastly, Mell also received income from real property sold in Bedminster which is being held in Mell's trust. Id. at ¶11.

The Court's Order does not include all of Mell's assets from the last three years for which Plaintiff moved. These assets include but not limited to 1) the buyout and future retirement distributions from Gulfstream, 2) the buyout and future retirement distributions from W.H. Mell Associates, 3) proceeds from the sale of his airplane and 4) income received from the sale of the property.

It is therefore respectfully requested that the Court modify the existing Order and enter the proposed Order which reflects the relief sought by Plaintiff. Plaintiff's proposed Order is attached hereto as Exhibit B.

Thank you for your attention to this matter.

Respectfully,

Bruce H. Nagel

BRUCE H. NAGEL

CC: All Counsel (via E-File)

EXHIBIT

A

FILED

12:34 pm, Jan 07, 2020

LOMURRO, MUNSON, COMER, BROWN & SCHOTTLAND, LLC
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Attorney for Defendant,
S. Bradley Mell
New Jersey Attorney ID #015072007

B.B.,

Plaintiff,

v.

S. BRADLEY MELL, KIMBERLY RUGGLES
MELL, and W.H. MELL ASSOCIATES,
INC.; GULFSTREAM CM, LLC,
GULSTREATM GM, L.L.C., AERO CARE
SERVICES, L.L.C.

Defendants.

SUPERIOR COURT OF NEW JERSEY
LAW DIVISION
ESSEX COUNTY

Docket No: ESX-L-7200-19

Civil Action

**CERTIFICATION OF MICHAEL
SIMON SCOTT**

Michael Simon Scott, being of full age, hereby certifies:

1. I am the close friend and Attorney-in-fact of the Defendant, S. Bradley Mell (hereinafter "Mell"). As such, I have personal knowledge of the facts stated herein. I have made this certification in opposition of the Plaintiff's Order to Show Cause.
2. I was named attorney-in-fact of Mell in a Power of Attorney document dated November 20, 2018. A true and accurate copy of that POA is attached hereto as **Exhibit A**.
3. Mell is currently serving a seven (7) year prison sentence at Allenwood Penitentiary in Allenwood, PA. Due to his incarceration, I have taken on the responsibility of managing

his finances, more specifically ensuring that all current debts are satisfied.

4. During Mell's criminal proceeding, he was simultaneously engaged in matrimonial proceedings with his then wife, Kimberly Ruggles Mell (hereinafter "Kimberly") who is also named as a defendant in the present action. The two were divorced and a Final Judgment of Divorce (hereinafter "JOD") was entered into under Docket Number FM 18-724-18.

5. During his criminal proceedings, Mell also retired from Gulfstream CM, LLC, (hereinafter "Gulfstream") a management company and an entity which is also named as defendant in this present action. As part of the retirement, Mell negotiated a buyout of his membership interest and is paid a percentage of the monthly collected management fee on a monthly. He is also paid a percentage of the net profits, if any, on an annual basis.

6. The monthly gross payment has been \$29,880.00 for the past several months. However, said payment is subject to fluctuation based upon the Gulfstream management fees, Furthermore, from that gross payment federal and state income taxes are paid at a rate of 35%. This leaves the net payment as \$19,422.00. From that net payment it is split between Mell and Kimberly; 40% to Mell and 60% to Kimberly per the parties JOD. This leaves Mell with \$7,768.80 per month to cover all his current expenses.

7. From that percentage of the net payment to Mell, the majority is used to pay monthly expenses including \$1,016.29 in monthly storage for his personal assets while he is incarcerated, \$1,900.00 towards a car lease (Mell obviously does not need the car but it is less costly to pay out the lease on the car than to return it to the dealer at this point), approximately \$1000.00 in various expenses for his children, \$300.00 towards Verizon bills, and continual legal fees which vary from month to month.

8. The percentage of the net payment to Kimberly is used to care for herself and the children of the marriage.

9. Any disruption in the Gulfstream payments would result in an inability of Kimberly to adequately care for the children. That disruption would be devastating to all Defendants at this time. This is Kimberly sole source of income.

10. Prior to his being incarcerated, Mell made arrangements to liquidate certain assets that were held both by LLCs and in Trust. As an individual that just endured a year-long matrimonial litigation and was now facing the possibility of being incarcerated for seven years, he had no need for certain assets that cost an exceptional amount of money to maintain and were encumbered by liens. One of those assets was a Jet that was sold for approximately \$1,595,000.00 as mentioned in the Plaintiff's papers. Same Jet was not owned by Mell but by and

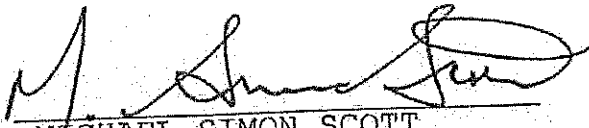
LLC and a large portion of the sales price was used to pay off the outstanding debt that encumbered the loan.

11. The other large asset that was sold was the real property in Bedminster as mentioned in the Plaintiff's moving papers. The Bedminster home was not owned individually, but rather was owned in Trust. The proceeds from this sale, less the mortgage that was paid off, remain in the 2012 Trust.

12. As noted previously, as part of an estate planning initiative, two trusts were form in 2012, the Stephen Bradley Mell 2012 Trust and the Kimberly Ruggles Mell 2012 Trustee. Kimberly is the Trustee of the Mell Trust and Mell is the Trustee of the Kimberly Trust. Neither Mell or Kimberly are named beneficiaries or have any right to income or the corpus of these trusts. The beneficiaries of these are trust are the three (3) children born of the marriage.

13. Throughout both the criminal and matrimonial proceedings involving Mell, his major concern was that his ex-wife and children were taken care of financially.

I hereby certify that the foregoing statements made by me are true. I am aware that if any of the foregoing statements made by me are willfully false, I am subject to punishment.

BY: 
MICHAEL SIMON SCOTT

DATED: December 16, 2019

EXHIBIT B

NAGEL RICE, LLP
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 Attorneys for Plaintiff

B.B.,	:	SUPERIOR COURT OF NEW JERSEY
	:	ESSEX COUNTY: LAW DIVISION
Plaintiffs,	:	DOCKET NO.: ESX-L-7200-19
	:	
vs.	:	Civil Action
	:	
S. BRADLEY MELL, KIMBERLY	:	
RUGGLES MELL, and W.H. MELL	:	
ASSOCIATES, INC., GULFSTREAM	:	ORDER GRANTING ATTACHMENT AND
CM, L.L.C., GULFSTREAM GM,	:	OTHER INJUNCTIVE RELIEF
L.L.C., AEROCARE SERVICES,	:	
L.L.C.,	:	
	:	
Defendants.	:	
	:	

THIS MATTER having come before the court on December 17, 2019
 as the return date of an Order to Show Cause entered on December
 12, 2019, and the court having heard oral argument;

IT IS on this 7th day of JANUARY , 2020;

ORDERED as follows:

1. Plaintiff's application for a writ of attachment against
 any and all of Bradley Mell's assets and income including but not
 limited to 1) the buyout and future retirement distributions from
 Gulfstream, 2) the buyout and future retirement distributions from
 W.H. Mell Associates, 3) proceeds from Aero Care including the

sale of his airplane and 4) income received from the sale of the property is granted.

2. Defendant, Mell shall account for any and all amounts he received as a buyout from W.H. Mell Associates and all income Mell will continue to earn in the future from W.H. Mell Associates which shall be paid into the trust account of Tompkins McGuire pending further order of the court.

3. Defendant, Mell shall account for any and all amounts he received as a buyout from Gulfstream and all income Mell will continue to earn in the future from Gulfstream of which 40% shall be paid into the trust account of Tompkins McGuire pending further order of the court.

4. Defendant, Mell shall account for any and all amounts he received from Aero Care which shall be paid into the trust account of Tompkins McGuire pending further order of the court.

5. Defendant, Mell shall account for any and all amounts he received from the sale of the property which shall be paid into the trust account of Tompkins McGuire pending further order of the court.

6. Defendant Mell shall account for any and all asset transfers made by him individually or as trustee within the last three years which shall be paid into the trust account of Tompkins McGuire pending further order of the court.

7. Defendant Mell is hereby enjoined and restrained from transferring, encumbering, or otherwise hypothecating any assets. He is further enjoined and restrained from transferring, encumbering, or otherwise hypothecating any asset in his capacity as trustee or co-trustee of any trust.

8. Plaintiff's application for the appointment of a fiscal agent is denied without prejudice.

9. and it is further ORDERED that a copy of this Order shall be served upon all counsel of record within seven (7) days of the date herein per the Rules of Court.

X Unopposed

Robert H. Gardner, JSC

HONORABLE ROBERT H. GARDNER, J.S.C.